

CHECKING WHETHER THE COURT ALREADY ORDERED NON-DISCLOSURE OF YOUR INFRACTION (I.C. 34-28-5-15)

Prepared for: Maria-Alejandra O'Shaughnessy-Whitfield

WHY YOU CHECK FIRST. In the situations I.C. 34-28-5-15 covers automatically - the person is not prosecuted, the charge is dismissed, the person is adjudged not to have committed the infraction, or an adjudication is later vacated - the statute requires the COURT to order the clerk and any case management system operator not to disclose the infraction information to non-criminal-justice organisations or individuals. The court is supposed to act on its own. So the first step is never to file anything: it is to find out whether the order was already entered, because where it was, there is nothing to file.

ONE EXCLUSION BEFORE ANYTHING ELSE. The automatic rule does not apply where prosecution was DEFERRED. A deferral, or a satisfied judgment, supports a verified petition no earlier than five years after satisfying the conditions - that is the five-year branch, not the automatic one.

THE WORKSHEET. Gather these from your own papers, then make the call described below. Nothing on these lines is written for you:

County where the infraction was handled:

.....

Cause number, if one was assigned:

.....

How the matter ended, and on what date (never prosecuted / dismissed / found not to have committed it / adjudication vacated / deferral completed / judgment satisfied):

.....

Was prosecution deferred, answered from your own papers:

.....

THE CALL. Ask the office of the clerk of the court where the infraction was handled whether the court entered an order under I.C. 34-28-5-15 in your cause. Write down the answer:

Answer from the records office of the court where the infraction was handled - was a non-disclosure order under I.C. 34-28-5-15 already entered in your cause:

.....

IF THE ORDER WAS ALREADY ENTERED: there is nothing to file. The order runs to the clerk and any case management system operator, restricting disclosure to non-criminal-justice organisations and individuals. Note that in Indiana, record relief restricts access to the records; it does not remove them.

IF NO ORDER WAS ENTERED, OR YOUR SITUATION IS A DEFERRAL OR SATISFIED JUDGMENT: the statute provides a verified petition, with these recorded features - it is filed under the

original cause number, or as an MC case type where none was assigned, in the court where the charges were brought or the trial was held; there is no fee; it is served on the prosecuting attorney, who has thirty days to file a notice in opposition; and the earliest filing dates are: found not to have committed it - 30 days after judgment; vacatur final or certified - 365 days; conduct not prosecuted - 2 years after the conduct; dismissal with no new action filed - 30 days after dismissal; deferral or judgment satisfied - 5 years.

THE PETITION IS THE SECOND DOCUMENT IN THIS PACKET. Use it only if this check comes back empty - no order entered - or if your route is the deferral or satisfied-judgment branch. Indiana publishes no statewide form for an I.C. 34-28-5-15 petition, so what follows is drafted to the statute's own requirements. Before you file it, ask the clerk of the court where the infraction was handled TWO things: what that court requires for an I.C. 34-28-5-15 petition, and - if no cause number was ever assigned to your infraction - how that county assigns the MC case type. This packet leaves that caption line blank on purpose rather than guessing a county convention that varies.

WHEN TO STOP AND GET HELP INSTEAD:

- the prosecuting attorney files a notice in opposition;
- the court sets a hearing;
- prosecution was deferred and the five-year clock has not run;
- the county's MC case-type handling is unclear.

Routes: obligation:unit:IN:in_infraction_nondisclosure:in_infraction_nondisclosure-stage-1 ;
obligation:unit:IN:in_infraction_nondisclosure:in_infraction_nondisclosure-stage-2

IN THE COURT
..... COUNTY, INDIANA

CAUSE NUMBER (the original cause number; if no cause number was assigned, the MC case-type number the clerk of that county tells you to use):

.....

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield

VERIFIED PETITION FOR AN ORDER OF NON-DISCLOSURE OF INFRACTION INFORMATION
(I.C. 34-28-5-15)

The Petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, petitions the Court under Indiana Code 34-28-5-15 for an order directing the clerk of this Court, and any person or entity operating a case management system for this Court, not to disclose the infraction information described below to a non-criminal-justice organisation or individual. In support, the Petitioner states:

1. IDENTITY. The Petitioner is Maria-Alejandra O'Shaughnessy-Whitfield, the person named in the infraction matter described in paragraph 2.

2. THE INFRACTION MATTER. The infraction, and the county and court in which it was handled:

.....

3. HOW THE MATTER ENDED, AND WHEN. State which one applies and the date it occurred - never prosecuted; dismissed with no new action filed; adjudged not to have committed the infraction; an adjudication vacated by an order or decision that is now final or certified; a deferral programme completed; or a judgment satisfied:

.....

4. THE EARLIEST FILING DATE HAS PASSED. Indiana Code 34-28-5-15 fixes the earliest date on which this petition may be filed by how the matter ended: thirty (30) days after judgment where the person was adjudged not to have committed the infraction; three hundred sixty-five (365) days after an order or decision vacating an adjudication becomes final or is certified; two (2) years after the conduct where the conduct was not prosecuted; thirty (30) days after dismissal where no new action was filed; and five (5) years after satisfying the conditions of a deferral programme or the judgment imposed. The date computed from paragraph 3 under the applicable rule, which has passed:

.....

5. THE COURT HAS NOT ALREADY ORDERED NON-DISCLOSURE. Where a person is not prosecuted, the charge is dismissed, the person is adjudged not to have committed the infraction, or an adjudication is vacated, Indiana Code 34-28-5-15 requires the Court to order non-disclosure on its own. The Petitioner asked the office of the clerk of the court in which the infraction was handled whether such an order was entered in this cause, and states the answer received:

.....

(Where the answer is that an order was already entered, do not file this petition: the relief already exists. Where the Petitioner's route is a completed deferral or a satisfied judgment, the automatic rule does not reach it and this paragraph is answered by stating that branch.)

6. NO FEE. No filing fee is charged for this petition.

7. SERVICE ON THE PROSECUTING ATTORNEY. A copy of this petition is served on the prosecuting attorney, who has thirty (30) days from service to file a notice in opposition. The prosecuting attorney served, and the address used:

.....

WHEREFORE, the Petitioner asks the Court to order the clerk of this Court, and any person or entity operating a case management system for this Court, not to disclose to a non-criminal-justice organisation or individual the infraction information described in paragraph 2, and for all other proper relief.

VERIFICATION. I affirm under the penalties for perjury that the foregoing representations are true.

SIGNATURE OF PETITIONER

DATE

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

FOR THE COURT ONLY - do not write below this line.

The Court, having considered the petition, ORDERS:.....

JUDGE DATE

BEFORE YOU FILE THIS. Ask the clerk of the court where the infraction was handled what that court requires for an I.C. 34-28-5-15 petition, and - if no cause number was ever assigned - how that county assigns the MC case type. Indiana publishes no statewide form for this petition and county handling of the case-type assignment is not uniform, so the caption above is left for you and the clerk to complete rather than guessed. Do not file this petition if the clerk tells you the Court already entered a non-disclosure order in your cause: the relief already exists.

STOP AND GET HELP INSTEAD IF: the prosecuting attorney files a notice in opposition; the Court sets a hearing; prosecution was deferred and the five-year clock has not run; or the county's MC case-type handling is unclear.

Note that in Indiana, record relief restricts access to the records; it does not remove them.

Routes: obligation:unit:IN:in_infraction_nondisclosure:in_infraction_nondisclosure-stage-1 ;
obligation:unit:IN:in_infraction_nondisclosure:in_infraction_nondisclosure-stage-2